CMA Board Approval: 03/16/2024
Effective Date: 05/01/2024

# COOLFONT MOUNTAINSIDE ASSOCIATION
# RESOLUTION 2024-02
# DOMESTIC PET POLICY

## AUTHORITY

**WHEREAS** CMA Articles of Incorporation stipulate a reason for CMA existence is to provide exterior maintenance for the lots and homes within The Properties, maintain unkempt lands, fix assessments (or charges) to be levied against The Properties, and do any other thing that, in the opinion of the Board, promotes the common benefit and enjoyment of the residents;

**WHEREAS** the CMA Declaration of Covenants and Restrictions, Article IV, § 2, (c) states the right of the Association, as provided in its Articles and Bylaws, to suspend the enjoyment rights of any Member for any period during which any assessment remains unpaid, and for any period not to exceed thirty (30) days for any infraction of its published rules and regulations;

**WHEREAS** the CMA Declaration of Covenants and Restrictions, Article IX, § 3 states enforcement of these covenants and restrictions shall be by any proceeding at law or in equity against any person or persons violating or attempting to violate any covenant or restriction, either to restrain violation or to recover damages, and against the land to enforce any lien created by these covenants; and failure by the Association or any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter;

**WHEREAS** the CMA Bylaws, Article 5, § 5.2 states the Board shall make and publish rules and regulations, not inconsistent with the Articles, the Covenants, or law for the use and enjoyment of, and the imposition of penalties with respect thereto, the Common Properties by members, immediate family of members, guests, and tenants; such rules and regulations shall include procedures to assure any penalties shall not be arbitrary or unreasonable and provide a mechanism for appeal; and Section 5.3 states after the Board has adopted and published such rules and regulations if the personal conduct of any member, guest, or tenant violates such the Board may suspend the rights of any such person and the responsible member;

**WHEREAS** the CMA Bylaws, Article 5, § 5.3 states after the Board has adopted and published such rules and regulations, if the personal conduct of any Member, guest, or tenant violates such rules and regulations, the Board may, in accordance with Section 5.2, suspend the rights of any such person and of the responsible Member;

**WHEREAS** the CMA Bylaws, Article 8, § 8.1 (d) states the Board shall have power to adopt and publish the rules and regulations, including fees, if any, governing the use of the Common right to use the common recreational facilities or water system by a Member during any period in which such Member is delinquent in the payment of any assessment or usage fee levied by the Association. Such right may also be suspended for Members, after notice and opportunity for hearing before the Board, for infraction of the published rules and regulations of the Association established pursuant to Article 5; and

**WHEREAS**, the CMA Declaration of Covenants and Restrictions, Article VI, § 4 states no animals shall be kept on any lot, except household pets in reasonable numbers that do not remain outdoors overnight and do not cause a nuisance. No animals may be kept for any commercial purpose; and § 9 states no noxious, offensive or potentially dangerous activity shall be permitted on any lot or within the subdivision, including operation of loud motor vehicles of any kind or firearms of any kind, hunting, open fires, loud parties or pets, fireworks or bright external lights. After 11 pm outside activity that can disturb other residents must be kept to an absolute minimum except in case of emergency.

**WHEREAS,** the CMA Rules and Regulations Regarding the Use of Property, Article 3.3 Prohibited Uses states miscellaneous uses including but not limited to: agriculture other than a residential garden, wayside stands or seasonal sales, raising or breeding of livestock or poultry, housing of more than 2 household pets or housing of pets outside, and housing of animals not customarily household pets.

## PURPOSE

**WHEREAS** to promote the peaceful enjoyment of all CMA properties and common lands, the Board wishes to establish rules, enforcement policies, and procedures in accordance with the CMA Covenants and Restrictions, Bylaws, and rules and regulations so that it may fairly and consistently enforce the governing documents and ensure the public health and safety of all owners, guests, tenants, lessees, occupants, invitees, and any other persons occupying or visiting the premises of the CMA owners.

**WHEREAS** in accordance with Morgan County, WV Dog Leash Ordinance and to provide a safe and peaceful environment for owners, guests, invitees, lessees, and tenants to avoid conflicts with other domestic animals and wildlife, and for the protection of the domestic animals themselves, the Board resolves to establish rules, procedures, and enforcement policies for the leashing and housing of pets.

## SCOPE AND INTENT

**WHEREAS** it is the intent that this resolution be applicable to all owners, guests, tenants, lessees, occupants, invitees, and any other persons occupying or visiting the premises of the CMA owners.

This policy resolution No. 2024-01 shall remain in effect until otherwise rescinded, modified, or amended by a majority of the Board of Directors and recorded in the Morgan County, WV Clerk's Office.

## SPECIFICATIONS

Therefore, be it resolved that the Board of Directors hereby adopts the following domestic pet policy:

1. Pet owners are responsible for the immediate removal and proper disposal of animal waste on all portions of the Common Areas, including the private streets in the Community and pets damaging, soiling, defecating on, or defiling any private property

(other than that of such pet's owner) or the Common Areas, roads, trails, or amenities shall be considered a violation.
2. Pets causing unsanitary, dangerous, or offensive conditions shall be considered a violation.
3. Pets making or causing noises of sufficient volume to interfere with other residents' rest or peaceful enjoyment of the Property shall be considered a violation.
4. Pets shall not be permitted upon the Common Areas, roads, trails, or amenities unless they are carried or leashed and pets running at large shall be considered a violation.
5. No pet may be leashed to any stationary object on the Common Areas and left unattended.
6. Pet Owners are responsible for any property damage, injury, or disturbances their pet may cause or inflict and allowing any pet to molest, attack, or otherwise interfere with the freedom of movement of persons on the Common Areas, roads, trails, or amenities, to attack another pet or wildlife, or to chase vehicles shall be considered a violation.
7. No pet shall be housed outside of the home.
8. Homeowners with more than two (2) pets must apply to the BOD for a special exception to the RRRUP.
9. In accordance with the federal Fair Housing Act, WV's Fair Housing Act, and WV's White Cane Law, reasonable accommodation will be extended to service animals, psychiatric service animals, and emotional support animals. Proper documentation may be required.
10. Commercial breeding of pets is prohibited.
11. All pets must have and display, as appropriate, evidence of all local ordinance-required registrations and inoculations.

## PROCEDURES

Any Owner concerned with a pet-related problem should do the following:

1. Attempt to arrive at a solution to the problem with the pet owner in a courteous and helpful manner.
2. If personal attempts at a solution fail, then a written complaint should be filed with the Association. The complaint should document the problem as thoroughly as possible. Documentation should include identification of pet(s) involved and its owner, the property owner (if different), a complete description of the problem or disturbance, and dates and times of disturbances (whenever possible), as well as a brief description of informal attempts to solve the problem.
3. Suspected stray pets should be reported to the appropriate Morgan County official (for possible identification) prior to contacting the Association.
4. All bites, attacks by pets, or diseased animals should be reported to the appropriate local officials prior to notifying the Association.
5. Penalties for violation of applicable County ordinances may be enforced by the County without regard to any remedies pursued by the Association.
6. In the event of emergency only, the parties involved may take any actions deemed prudent to resolve the emergency without regard to the above procedures. A written report should be made to the Association.

## ENFORCEMENT

1. Owners whose pets are found to be in violation of this Domestic Pet Policy will receive prompt notice of such violation in writing via email or mail to the owner of record within 3 days after a determination has been made regardless of whether the animal involved is their personal pet or the pet of their guests, tenants, lessees, occupants, invitees, and any other persons occupying or visiting the premises of the CMA owners.
2. The CMA Board will make official notification to the owner. Such notification shall include details of their responsibility to remedy the situation. CMA will maintain a record of notifications.
    a. A first violation that does not include injury to another person or pet will result in an email or letter of warning to the property owner.
    b. A second violation– or any violation resulting in injury to another person or pet will incur a fine to the property owner, without regard to any local enforcement penalty or penalty pursued by the injured party. Fines for this Policy will be outlined in the CMA Schedule of Fees, Fines, and Charges.
    c. Owners have 48 hours from notification to respond to the violation stating what steps have been taken to mitigate the issue.

## ADDITIONAL INFORMATION

1. This policy shall be incorporated in and referred to by appropriate CMA rules and regulations. If there is conflict between this policy and the Articles of Incorporation, Covenants and Restrictions, or Bylaws, those documents take precedence. If there is conflict between this policy and other CMA rules and regulations, the latest dated material takes precedence. Any conflict will be brought to the Board's attention for resolution.
2. Further information on local animal control policies can be found at:
    - Morgan County Animal Control: https://morgancountywv.gov/animal-control/
    - Morgan County Dog Leash Ordinance: https://morgancountywv.gov/wp-content/uploads/2023/03/Leash-ordinance-2014.pdf
    - Morgan County Canine Restraint Ordinance: https://morgancountywv.gov/wp-content/uploads/2022/08/Canine_Restraint_Ordinance.pdf
    - Morgan County Animal Control Facebook page: https://www.facebook.com/Morgan-County-West-Virginia-Animal-Control-187168861451925/

3. By listing the resources indicated, CMA does not endorse the organizations or beliefs they may espouse; the listing is provided as source of information for owners' convenience.

# COOLFONT MOUNTAINSIDE ASSOCIATION
# RESOLUTION 2024-02 ACTION RECORD

Duly adopted at a meeting of the Board of Directors held: March 16, 2024

Motion by: Valerie Creason  Seconded by: Steve Katz

## VOTE:

| | YES | NO | ABSTAIN | ABSENT |
|---|---|---|---|---|
| Steve Katz, President | X | | | |
| Norm Rosenberg, Vice President | | | | X |
| Dawne Holz, Treasurer | X | | | |
| Valerie Creason, Secretary | X | | | |
| Anna Connolly, Director | | | | X |
| Dave Creason, Director | X | | | |
| John Wennersten, Director | X | | | |

## ATTEST:

Valerie Lm Creason  04/22/2024

Valerie Creason, Secretary

Resolution effective date: 05/01/2024

684

**CMA Board Approval: 03/16/2024**
**Effective Date: 05/01/2024**

Morgan County
Kimberly Nickles, Clerk
Instrument 903980
05/21/2024 @ 11:08:29 AM
COVENANTS, RESTRICTIONS, ARTIC
Book 295 @ Page 684
Pages Recorded 5
Recording Cost $ 12.00

# COOLFONT MOUNTAINSIDE ASSOCIATION
# RESOLUTION 2024-02
# DOMESTIC PET POLICY

COOLFONT MOUNTAINSIDE ASSOCIATION
21321 HIDDEN POND PLACE
BROADLANDS VA 20148-4022

## AUTHORITY

**WHEREAS** CMA Articles of Incorporation stipulate a reason for CMA existence is to provide exterior maintenance for the lots and homes within The Properties, maintain unkempt lands, fix assessments (or charges) to be levied against The Properties, and do any other thing that, in the opinion of the Board, promotes the common benefit and enjoyment of the residents;

**WHEREAS** the CMA Declaration of Covenants and Restrictions, Article IV, § 2, (c) states the right of the Association, as provided in its Articles and Bylaws, to suspend the enjoyment rights of any Member for any period during which any assessment remains unpaid, and for any period not to exceed thirty (30) days for any infraction of its published rules and regulations;

**WHEREAS** the CMA Declaration of Covenants and Restrictions, Article IX, § 3 states enforcement of these covenants and restrictions shall be by any proceeding at law or in equity against any person or persons violating or attempting to violate any covenant or restriction, either to restrain violation or to recover damages, and against the land to enforce any lien created by these covenants; and failure by the Association or any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter;

**WHEREAS** the CMA Bylaws, Article 5, § 5.2 states the Board shall make and publish rules and regulations, not inconsistent with the Articles, the Covenants, or law for the use and enjoyment of, and the imposition of penalties with respect thereto, the Common Properties by members, immediate family of members, guests, and tenants; such rules and regulations shall include procedures to assure any penalties shall not be arbitrary or unreasonable and provide a mechanism for appeal; and Section 5.3 states after the Board has adopted and published such rules and regulations if the personal conduct of any member, guest, or tenant violates such the Board may suspend the rights of any such person and the responsible member;

**WHEREAS** the CMA Bylaws, Article 5, § 5.3 states after the Board has adopted and published such rules and regulations, if the personal conduct of any Member, guest, or tenant violates such rules and regulations, the Board may, in accordance with Section 5.2, suspend the rights of any such person and of the responsible Member;

**WHEREAS** the CMA Bylaws, Article 8, § 8.1 (d) states the Board shall have power to adopt and publish the rules and regulations, including fees, if any, governing the use of the Common right to use the common recreational facilities or water system by a Member during any period in which such Member is delinquent in the payment of any assessment or usage fee levied by the Association. Such right may also be suspended for Members, after notice and opportunity for hearing before the Board, for infraction of the published rules and regulations of the Association established pursuant to Article 5; and